

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Spencer Migotsky	Team: Squad #01	CCRB Case #: 201410115	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 09/29/2014 7:00 PM	Location of Incident: 32nd Precinct stationhouse	18 Mo. SOL 3/29/2016	Precinct: 32
Date/Time CV Reported Mon, 09/29/2014 7:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/02/2014 12:19 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Castillo	15434	948762	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Julio Calle	00466	927782	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Castillo	Discourtesy: PO Jason Castillo spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Jason Castillo	Abuse: PO Jason Castillo threatened to arrest § 87(2)(b)	B . Exonerated

Case Summary

On September 29, 2014, at approximately 7:00 pm, § 87(2)(b) went to the 32nd Precinct stationhouse to have officers serve papers on his ex-wife. He talked to PO Castillo (under observation by Sgt. Calle) who told him that he was unable to serve the papers. § 87(2)(b) was dissatisfied with PO Castillo's explanation and pressed the issue. In response, PO Castillo allegedly told § 87(2)(b) to "get the fuck out of the precinct" (**Allegation A**) and threatened to arrest him (**Allegation B**) (encl. 7B).

Mediation, Civil and Criminal Histories

On October 2, 2014, Mediation was offered to and accepted by § 87(2)(b) however, it was rejected by PO Castillo on December 12, 2014 (encl. 24B). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the eighth complaint filed by § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Castillo has been a member of the NYPD for 4 years and has no previous CCRB allegations (encl. 2).

Finding and Recommendations

Explanation of Subject Officer Identification

PO Castillo's name and shield were provided to § 87(2)(b) and § 87(2)(b) alleged that PO Castillo said "get the fuck out of the precinct" and threatened to arrest him. § 87(2)(g)

§ 87(2)(b)

Recommendations

Allegation A – PO Jason Castillo spoke rudely to § 87(2)(b)

According to the IAB log and a call to § 87(2)(b) on October 2, 2014, § 87(2)(b) claimed that PO Castillo told him to "get the fuck out of the precinct." While he said that PO Castillo told him to "get out of the precinct" during his in-person statement, he was not interviewed until December 29, 2014, three months after the incident. Additionally, during a follow-up phone call on April 14, 2015, § 87(2)(b) confirmed that PO Castillo used "vulgar language" when telling him to leave the precinct. PO Castillo stated that after he gave his name and shield to § 87(2)(b) he simply walked away leaving § 87(2)(b) behind in the entrance area of the stationhouse. Sgt. Calle did not recall whether PO Castillo said "get the fuck out of the precinct" to § 87(2)(b) but maintained that PO Castillo acted in a polite and professional manner.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – PO Jason Castillo threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that PO Castillo told him to leave the precinct or he would arrest him. PO Castillo, for his part, claimed that § 87(2)(b) was yelling and cursing in the stationhouse to such an extent that he drew onlookers. As a result of § 87(2)(b)'s actions, PO Castillo warned § 87(2)(b) that he would be summonsed for disorderly conduct if he did not calm down.

§ 87(2)(g)

1. § 87(2)(g)

For these reasons, it is recommended that **Allegation B** be closed as **exonerated**.

Pod: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date